



File No.: EXP202206141

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on May 24, 2022. The complaint is directed against COMUNIDAD DE PROPIETARIOS B.B.B. with NIF NIF.1 (hereinafter, the respondent or the Community of property owners). The reasons for the complaint are as follows:

“Good morning

I am writing to you regarding the following problem:

In the entrance of my apartment building, the President has placed a list with my apartment number and the amount of the debt I owe to the community among those of other neighbors.

I am completely locatable, physically, in person or by phone.

Is it legal for that notice to be exposed for anyone who accesses the building?

Does it not violate our right to privacy?

I have photographs that prove what I indicated, and I request assistance to have this notice removed as soon as possible.”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 31, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 1, and registered on July 4, 2022, a response letter was received by this Agency from the property management administrator, indicating that this Property Management had not introduced the document subject to the complaint. However, it had engaged in discussions with its compliance advisors to seek their assistance and advice.

It had conducted a search and understood that the complaint referred to the Community of Apartments B.B.B. located at ***ADDRESS.1.

It understood that the complaint did not concern any of the rights recognized in Articles 15 to 22 of the GDPR.

Regarding the causes that had motivated the incident that led to the complaint, it was indicated:

“This party understands that the cause was the ignorance by the board of directors of said community of the regulatory provisions regarding the protection of personal data.”

Since this Property Management had not placed any document in the Community of Apartments B.B.B. where the complainant is a property owner, it understood that no measures were warranted. It then stated:

“However, it will be communicated to the president of said community that for the placement of documentation containing personal data on the notice board of a community of property owners, it must act in accordance with the provisions of the Horizontal Property Law (art. 9.h. of the LPH).”

It concluded by highlighting its commitment to regulatory compliance and its willingness to cooperate with this Agency.

THIRD: On August 24, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in

Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects reflected in the preliminary investigation report dated May 19, 2023:

"Facts according to the statements of the complainant:

The complainant is filing against the property management that manages the community of property owners to which they belong for publishing on the notice board (locked) a list of debtor neighbors where their apartment number and the amount owed appear. (...)

Date on which the reported facts took place: May 6, 2023

Relevant documentation provided by the complainant:

- Photo of the notice board where their personal data appears

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INVESTIGATED ENTITIES

During the current proceedings, the following entities have been investigated:

COMMUNITY OF OWNERS B.B.B. with NIF located at ***ADDRESS.1

RESULT OF THE INVESTIGATION PROCEEDINGS

On 25/11/2022, and with registration number REGAGE22s (...) a request for information was sent by postal mail to the respondent, with acknowledgment dated 02/12/2022, to which no response was received. On 30/01/2023, and with registration number REGAGE23s (...) a reiteration was sent by postal mail to the respondent, with acknowledgment dated 06/02/2023, to which no response was received either.

The same request for information sent to the respondent on 25/11/2022, with registration number REGAGE22s (...) (acknowledgment date 25/11/2022) and reiteration on 30/01/2023, with registration number REGAGE23s (...) (acknowledgment date 30/01/2023) was also sent to the property administrator, requesting the same information as that requested from the respondent. None of the requests were answered.

FIFTH: On 10 July 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.
- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of 1 October, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

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PROVEN FACTS

FIRST: The Community of Owners B.B.B. published on a notice board, locked, the document titled "COMMUNITY OF OWNERS B.B.B. APARTMENTS PENDING PAYMENT," disseminating personal data contained therein to both the other neighbors and any person who accessed the building and consulted the content of the mentioned notice board.

SECOND: The document titled "COMMUNITY OF OWNERS B.B.B. APARTMENTS PENDING PAYMENT" published on the notice board contains personal data.

The referred document informs about the amounts of the debt accumulated with the Community of Owners for five apartments. It contains the following text in capital letters:

"APARTMENTS PENDING PAYMENT"

Following this, five apartments are listed, identified by their number, along with the amounts of the debt accumulated by each of them with the Community of Owners.

The date of the document is 6 May 2022.

THIRD: The complainant, in the complaint letter dated 24 May 2022, states that she was fully locatable, physically, in person or by phone.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47 and 48.1 of Organic Law 3/2018, of 5 December, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

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In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that the Community of property owners carries out this activity in its capacity as data controller, as it is the one that determines the purposes and means, by virtue of Article 4.7 of the GDPR:

"'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

Article 4, paragraph 12 of the GDPR broadly defines "personal data breaches" (hereinafter personal data breach) as "a breach of security that leads to the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed;"

In the present case, there is a personal data breach under the circumstances indicated above, categorized as a breach of confidentiality. The personal data of the claimant were accessed by third parties without their consent.

In the complaint, the claimant states:

"In the portal of my apartment building, the President has placed a list with my apartment number and the amount of the debt I owe to the community among those of other neighbors."

Along with the complaint, two photographs have been provided showing a sign placed on the notice board of the community of property owners of the building, locked, which lists five apartments along with the amounts of the debts owed to the community of property owners.

According to the Article 29 Working Party, a "Breach of confidentiality" occurs when there is an unauthorized or accidental disclosure of personal data, or access to the same.

III

Obligation breached in relation to Article 5.1 f) of the GDPR

Article 5 of the GDPR establishes the principles relating to the processing of personal data.

Specifically, its paragraph 1.f) states the following:

"Principles relating to processing":

1. Personal data shall be:

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f) processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, the principle of confidentiality in the processing of personal data has been violated. Such data, which were under the responsibility of the respondent, were published on the notice board of the community of property owners of the building, making them accessible to anyone passing by.

In the first photograph provided by the claimant, a handwritten paper dated May 6, 2022, is seen with the title:

"COMMUNITY OF PROPERTY OWNERS B.B.B. APARTMENTS PENDING PAYMENT"

At the bottom, there is a list of five apartments, with an amount in euros indicated next to each one.

In the second photograph provided by the claimant, it can be seen that the paper with the list of apartments has been placed on the notice board of the community of property owners, locked.

According to the claimant, the mentioned board is located in the portal of their building.

Consequently, the claimant's status as a debtor, along with that of four other neighbors, as well as the amounts of the debts owed to the rest of the community of property owners, would have been exposed to the other neighbors, as well as to anyone who accessed the building and consulted the content of the notice board.

It is considered that the known facts could constitute an infringement, attributable to the Community of property owners, for violation of Article 5.1.f) of the GDPR as a result of a breach of confidentiality.

IV

Classification and qualification of the infringement of Article 5.1 f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that

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"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 5.1.f) of the GDPR

In light of the facts presented, it is deemed appropriate to impose a sanction on the party being claimed for the violation of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €700.00 (seven hundred euros).

VI

Obligation breached in relation to Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR states: (the underlining is ours).

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

In the document sent by the Property Administrator to this Agency on July 1, 2022, it was indicated:

"(...) the president of said community will be informed that for the placement of documentation containing personal data on the notice board of a community of property owners, it must act in

accordance with the provisions of the Horizontal Property Law (art. 9.h. of the LPH)."

Indeed, Article 9.1 h) of Law 49/1960, of July 21, on Horizontal Property (hereinafter LPH) indicates as an obligation of the owner:

"h) To communicate to the person performing the functions of secretary of the community, by any means that allows for proof of receipt, the address in Spain for the purposes of summons and notifications of all kinds related to the community. In the absence of this communication, the address for summons and notifications shall be deemed to be the apartment or premises belonging to the community, with full legal effects for those delivered to the occupant thereof.

If a summons or notification to the owner cannot be carried out at the place provided for in the previous paragraph, it shall be deemed to have been made by placing the corresponding communication on the notice board of the community, or in a visible place for general use designated for this purpose, with due diligence expressing the date and reasons for proceeding with this form of notification, signed by the person performing the functions of secretary of the community, with the approval of the president. The notification made in this manner shall produce full legal effects within three calendar days."

In the complaint document, the complainant states that they were fully locatable, physically, in person, or by phone.

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In a case such as the one examined, the Community of Property Owners must have a procedure in place that allows for compliance with the provisions of Article 9.1 h) of the LPH prior to publication.

In this regard, an attempt must be made to summon or notify the corresponding owner, and if it is impossible to carry it out at the designated location, the communication should be placed on the community's notice board or in a visible general-use area designated for this purpose.

This procedure acts as a security measure that ensures that the personal data of that owner is not accessible to third parties. Communication through the notice board would only be carried out if the requirements set forth in Article 9.1 h) of the LPH are met and in accordance with the provisions outlined in that article.

For all these reasons, it is considered that the known facts constitute an infringement consisting of the lack of appropriate technical and organizational measures to guarantee an adequate level of security relative to the risk of processing, ensuring confidentiality, attributable to the community of property owners, for violation of Article 32 of the GDPR.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes one of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"4. Infringements of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

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f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.”

VIII

Sanction for the infringement of Article 32 of the GDPR

In light of the facts presented, it is considered appropriate to impose a sanction on the accused party for the violation of Article 32 of the GDPR, classified under Article 83.4 of the GDPR. The sanction to be imposed is an administrative fine of €300.00 (three hundred euros).

IX

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €700.00 (seven hundred euros).

SECOND: TO IMPOSE on the COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF NIF.1, for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of €300.00 (three hundred euros).

THIRD: TO ORDER the COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF NIF.1, that pursuant to Article 58.2.d) of the GDPR:

1. Within one month, to prove compliance with the following measure:

Removal from the community of property owners' notice board of the document dated May 6, 2022, titled “COMMUNITY OF PROPERTY OWNERS B.B.B. APARTMENTS PENDING PAYMENT,” which lists five apartments and their debts to the Community of Property Owners.

2. Within six months, to prove compliance with the following measure:

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That the community of property owners has a procedure that ensures that communication would only be made through the notice board of said community if the requirements established by Article 9.1 h) of the LPH are met and in accordance with the provisions set forth in that article.

FOURTH: NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS B.B.B.

FIFTH: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in

relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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